

CV-26-003993 SMITH, IMANI vs AMADOR, VANESSA - Defendant's Demurrer to All Causes of Action in Plaintiffs' Complaint - SUSTAINED, with leave to amend, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: As a preliminary matter, the Court finds that Defendants' arguments relative to purported service defects are untimely herein, as no motion to quash has been filed and any such defects have now been waived. (Code Civ. Proc. § 418.10(e)(3).) With regard to Defendants' remaining arguments, the Court sustains the demurrer in its entirety. (Code Civ. Proc. § 430.10(e).) While the Court will grant leave to amend in this instance despite Plaintiffs' failure to oppose, Plaintiffs are cautioned that it is their burden to demonstrate how additional factual allegations can overcome the demurrer. Therefore, future failures to oppose dispositive motions could result in Plaintiffs losing the right to amend the pleading to attempt to allege additional facts to support the stated causes of action. The following are the tentative rulings for cases calendared before Judge Sonny S. Sandhu in Department 24:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

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